

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC Appeal No. 25/2025

M/s Grow International Consulting (Private) Limited
Through its Authorized Representative
Aijaz Ahmed Jamali

...Appellant

VERSUS

1. Government of Balochistan
Through Secretary, Balochistan Technical Education and Vocational Training Authority.
2. Chairman CRC, Labour and Manpower Department.

... Respondents

Quorum:

1. Mr. Habib ur Rehman Jamot.....Chairman CRC
2. Mr. Mubashir Ali Khan(FCIPS)..... Member PRC
3. Engr. Junaid Shah..... Member PRC
4. Mr. Iftikhar Ahmed Mir.....Technical Member PRC
5. Syed Mohibullah Advocate.....Private Member PRC

Decision Date: 11TH NOVEMBER, 2025

APPEAL UNDER RULE 56-A AGAINST CRC DECISION DATED 20-10-2025.

TSE #242504688052

For the appellant:

Mr. Muhammad Ishaq Nasir Advocate

For the Respondent:

Mr. Ghulam Raza (Assistant Director)
Mr. Muhammad Yasir (Assistant Director)

Date of Final Hearing: 7/11/25

Decided on :11/11/25

DECISION

BREIF FACTS:

The brief facts of the instant appeal are that the Appellant filed an appeal on 27th October, 2025, impugning the decision of the Complaint Redressal Committee (CRC) dated 20th October, 2025, whereby the complaint filed by the Appellant under Rule 56 of the Balochistan Public Procurement Rules, 2014 ("BPP Rules") was dismissed allegedly in violation of law, facts, and principles of natural justice.

The Appellant contends that it is a reputed consulting firm with an established record of satisfactory contract performance. It has been averred that in the procurement proceedings initiated by B-TEVTA, the Appellant was disqualified at Stage-II of the bidding process on

arbitrary and whimsical grounds. The Appellant maintains that the documents submitted at Stage-I were identical to those scrutinized at Stage-II, and therefore, its disqualification on the basis of the same documents is contrary to the spirit and intent of the BPP Rules. For a proper appreciation of the matter, it is imperative to refer to the background of the instant procurement proceedings. At the initial stage of technical evaluation, the Appellant was declared non-responsive on account of non-submission of certain documents on the ePPS dashboard. Consequently, the Appellant filed a complaint before the CRC, which was not decided within the stipulated period.

Thereafter, the Appellant preferred an appeal before this Committee. Upon perusal of the record and obtaining a report from the Director MIS, BPPRA, it was revealed that the requisite documents had indeed been uploaded by the Appellant on the ePPS portal, but were not visible due to a technical malfunction. This Committee, therefore, allowed the earlier appeal and directed the Director MIS - BPPRA to ensure visibility of the said documents on the ePPS dashboard. Pursuant thereto, the Appellant qualified at Stage-I of the technical evaluation.

PRAYERS

The Appellant has now preferred the present appeal primarily on the grounds that, having qualified at Stage-I based on identical documents, its disqualification at Stage-II by the Procuring Agency is without lawful justification. The Appellant has further assailed the evaluation criterion requiring submission of work completion certificates amounting to Rs. 25 million, contending that such a requirement is irrelevant to consultancy services. Lastly, the Appellant has pleaded that due to the 5MB file size limitation on the ePPS portal, it could not upload all its documents properly.

DECISION

After careful and thorough scrutiny of the record and submissions, this Committee is of the considered view that the instant appeal is devoid of merit. Under Rule 32(1) of the BPP Rules, if a bidder has any objection regarding the evaluation criteria, it is incumbent upon such bidder to seek clarification in writing from the Procuring Agency during the bidding process. The Appellant failed to do so and, by participating in the procurement process without reservation, is deemed to have accepted the terms and conditions of the bidding documents, including the prescribed evaluation criteria.

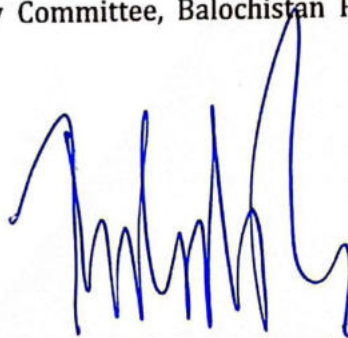
With respect to the contention regarding the 5MB document upload limitation, a technical clarification was sought from the Director MIS, BPPRA. It was confirmed that the permissible file size for uploading document on the ePPS portal is 5MB. The vendor (Appellant) attempted to upload a document exceeding the defined limit. It was further clarified that the vendor could have compressed or optimized the document size to conform to the system requirements but failed to do so. Moreover, the Appellant did not approach the BPPRA MIS section for technical assistance or guidance in this regard.

It is pertinent to note that thirteen (13) bidders participated in the subject procurement, out of which nine (09) were declared eligible while four (04), including the Appellant, were declared non-eligible. No other bidder encountered any such technical issue, which clearly indicates that the problem arose due to the Appellant's own lapse and not due to any malfunction of the ePPS system.

Without entering into the remaining grounds raised by the Appellant and merits of the case, this Committee finds that the failure of the Appellant to properly upload documents exceeding the 5MB file size limit—contrary to the prescribed system parameters—constitutes a sufficient and determinative ground for dismissal of this appeal.

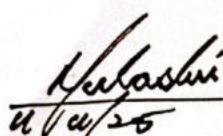
Accordingly, the appeal stands dismissed, being devoid of merit. The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents forthwith.

Announced on this 11h day of NOVEMBER, 2025, under the seal and authority of the Chairman, Procurement Review Committee, Balochistan Public Procurement Regulatory Authority.

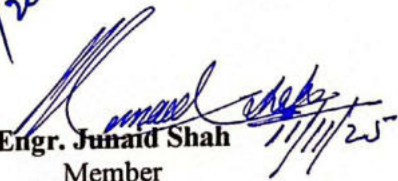

Habib Ur Rehman Jamot

Chairman
Procurement Review Committee

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)


Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee


Engr. Junaid Shah

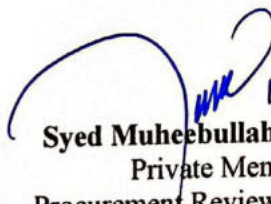
Member
Procurement Review Committee

Member
Procurement Review Committee
BPPRA


Retd. Chief Eng. Iftikhar Ahmed Mir

Technical Member
Procurement Review Committee

Member
Procurement Review Committee
BPPRA


Syed Muheebullah, Advocate
Private Member
Procurement Review Committee

Member
Procurement Review Committee
BPPRA

Member
Procurement Review Committee
BPPRA